opinion in the Kesavananda judgement,[25] others described his journey as a 'pilgrim's progress' to the shrine of the basic structure of the Constitution.[26]

On the one hand, it might well be said that Justice Chandrachud was compelled by judicial discipline to uphold the basic structure doctrine in the Minerva Mills judgement, seeing as the doctrine was established by a much larger panel of the Supreme Court in the Kesavananda judgement. While this may have been true from a moral and political perspective, it was not quite as clear from a legal perspective. First, scholars had debated long and hard whether the basic structure doctrine was actually endorsed by a majority of judges in the Kesavananda judgement. Many took the view that there was no 'majority' view at all – of the thirteen judges, six judges concluded that there were *no limitations* on Parliament's power to amend the Constitution; six others concluded that there were *implied limitations* on Parliament's power to amend the Constitution; and the final judge, Justice H.R. Khanna, held that while there were no such implied limitations, an 'amendment' to the Constitution necessarily excluded any attempts to abrogate its identity. The absence of a clear majority view might have been a way to sidestep the Kesavananda judgement, but it was not deployed. Second, it was arguable that the constitutional amendment to Article 368 had eliminated the basis for the basic structure doctrine, which relied in some measure on the text of the Constitution itself.[27] There also proved to be no appetite for this argument. Thus, Chief Justice Chandrachud upheld the basic structure doctrine (in contrast with his earlier view) despite an opportunity to overturn it.

While the outcome of the majority decision was known in advance, Justice Bhagwati's was not. Justice Bhagwati agreed with the majority's decision striking down Parliament's amendment of Article 368, but disagreed with the decision striking down the amendment to Article 31C. On the first issue, Justice Bhagwati was persuaded by Palkhivala's argument that Parliament could not transform a limited amending power into an unlimited one – to do so was a 'futile exercise'. On the second issue, he offered a strong rebuttal to the other judges, noting that the fundamental rights had no meaning to the poor and marginalized in the absence of